

In Re: Interplay Between Arbitration Agreements & Stamp Act (2023)

Enforceability of Unstamped Arbitration Agreements

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Citation & Forum: 2023 SCC OnLine SC 1666 | 7-Judge Constitution Bench

Core Legal Principle: Core Ratio: Non-stamping or insufficient stamping is a curable defect, not fatal to validity.

Section 11/8 referral court must only examine existence of arbitration agreement, not stamping.

Key Precedent Note: Overruled NN Global (5-Judge) and established India as a modern pro-arbitration seat.